

Bahá'ís Prohibited from Obtaining Identification Cards in Egypt

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THE UNIVERSAL HOUSE OF JUSTICE

21 December 2006

To the Bahá'ís of Egypt

Dearly loved Friends,

We have received the distressing news that on 16 December, the Supreme Administrative Court in Cairo ruled against the decision of a lower court that permitted Bahá'ís to obtain officially issued identification cards. We wholly sympathize in your disappointment that justice was not served by a ruling that robs the members of your community of so critical a right of Egyptian citizens owing only to your beliefs. But you must stand firm and persevere in your effort to win affirmation of this right. To do less would be to deprive the authorities in Egypt of the opportunity to correct a wrong which has implications for many others, no less than for yourselves. Moreover, to relent would be to disregard the moral courage of those organizations, media, and persons of goodwill who have joined their voices to yours in the quest for a just solution to a serious inequity.

In explaining the court's decision to the press, the presiding judge stated that the Egyptian constitution recognizes only three religions: Islam, Christianity, and Judaism. This argument misses the essence, obscures the issue. Surely you are not asking here for the Bahá'í Faith to be recognized. Like other Egyptian citizens, you simply wish to be free to carry out the requirement of the civil law that you must obtain identification cards without making a false statement about your religious beliefs. Possessing such a card is a common right to which every native-born Egyptian is entitled. But how strange it is that the custodians of the law would themselves oblige you to violate a government policy that all citizens without exception are expected to observe! It is, of course, worthy of praise that the judges so publicly upheld the validity of three of the divine religions. As a community that believes that all God's chosen Messengers are "seated upon the same throne, uttering the same speech, and proclaiming the same Faith", the Bahá'ís of Egypt have no difficulty embracing the truths of the three religions mentioned. But to what purpose were their names invoked? Was it to justify the exclusion of certain citizens from exercising their civil rights? Would this not amount to a misuse of the authority of these Faiths to perpetrate an injustice that offends the high standard of justice to which they hold their adherents? But your interest is not in a theological tug-of-war with the Egyptian judiciary, despite its gross misrepresentation of the Bahá'í Faith: it is in the application of the principles of equity, fairness, and honesty that are so vital to those of all faiths and no faith. The ruling was unreasonable not only because it is contrary to prescriptions set forth in the International Covenant on Civil and Political Rights, to which Egypt is a signatory, but more especially because the sacred scriptures of Islam extol tolerance as a precept of social stability.

This incident calls to mind the occasion more than eight decades ago when Egyptian judicial and ecclesiastical authorities considered the claims of our Faith, not in a sympathetic effort but with the intent to oppose. A case involving three Muslim men who had become Bahá'ís in a village prompted their interest. As a result, the appellate religious court of Beba delivered a verdict on 10 May 1925 that denounced the Bahá'í Faith and annulled the marriages of these men. Nevertheless, from the judges' scrupulous study of Bahá'í scriptures, they arrived at the accurate conclusion that the Bahá'í Faith was "a new religion", "entirely

independent”, with “beliefs, principles and laws” of its own. This verdict was sanctioned at the time by Egypt’s highest ecclesiastical authorities. If Egyptian magistrates were capable then of such clear perception, and others in a local court have so recently shown a similar awareness, it seems reasonable to trust that this capacity will in the future reassert itself positively at the highest level of authority in your country.

Well beyond a century ago, during the lifetime of Bahá'u'lláh, His Faith took root in your homeland. Despite instances of opposition, it flourished in a climate of intellectual ferment. As early as 1934 your National Spiritual Assembly was incorporated, thus assuming a legal personality that enabled it to function according to Bahá'í procedures and to hold properties, including a National Center and a cemetery. Then suddenly in 1960, without forewarning, Presidential Decree no. 263 was issued, banning your national and local institutions and confiscating your properties and other assets. For nearly five decades now the members of your community have been subjected to humiliation of all kinds, including the harassment of police surveillance and false arrests. Until now no evidence has been adduced to prove that you have been unworthy of the public’s trust, while there is much to confirm that you made noteworthy contributions towards fostering the spiritual, intellectual, and cultural character of the Egyptian people. In this regard, we recall with deep emotion and pride the distinguished services to your country and community of your late Bahá'í compatriot Hussein Bikar, who, despite having received a presidential award honoring his outstanding achievements as an artist, was denied an Egyptian identification card up until the time of his death.

This is no time, however, to dwell on a litany of the vexations your community has for so long sustained. It is, rather, an appropriate occasion for reflection on the broad context in which the recent action of the Supreme Administrative Court occurred, that from it you may derive an ever-larger sense of meaning and purpose.

Injustice is rife. Throughout the world it afflicts every department of life whether in the home, at the workplace, or in the public sphere as a consequence of the ill conduct of individuals, groups, or governments. Lamenting the horrors it breeds, Bahá'u'lláh made this poignant remark: “Justice is, in this day, bewailing its plight, and Equity groaneth beneath the yoke of oppression. The thick clouds of tyranny have darkened the face of the earth, and enveloped its peoples.” So grave a situation exists at a time of unprecedented change: opposite processes of chaos and of order interact in a spiral of turbulence that signals a transition in the spiritual and social agenda of the world as a whole.

Human society has arrived at a stage in its evolution when unity of the whole human race is imperative. To not appreciate this reality is to not grasp the meaning of the current crisis in world affairs. The principle of the oneness of humankind identifies the code for resolving the far-reaching issues involved. As Bahá'ís, you understand that this principle implies not only the ultimate peaceful goal that it signifies but involves, as well, your participation in the painful tasks entailed in attaining it. Hence, you appreciate the global connotations of instances of oppression at home or abroad and accept the responsibility of striving, guided by the principles of the Faith and in collaboration with others whenever possible, to combat injustice, for the common good.

Those groups supporting you in your current encounter are of a world-embracing vision and are themselves prepared to withstand the harsh resistance to their selfless occupation, sustaining blows of injustice in the process. As the rise of justice ensures the appearance of unity in the world, all who take on the formidable challenges of struggling for it have indeed captured the spirit of the age epitomized in the principle of oneness. To the extent that the fight for justice contributes to the establishment of a single global standard of human rights, the organizations in Egypt so engaged are working towards achieving the unification of their nation’s peoples. They are thus committing themselves in large measure to the vital task of reconciling

the tensions that bedevil their society and delay the attainment of its unity. Such reconciliation should not be impossible to Egypt's people, who can take pride in the celebrated enlightenment that in a glorious past ensured their unity in a flourishing society. Undoubtedly, Egypt will rise to participate, as befits its stature, in the fruition of that destiny of world peace and prosperity of which all nations dream.

Be assured of our ardent prayers in the Holy Shrines on behalf of each and every one of the members of your community and for the progress of all your compatriots in that land of ancient splendor.

[signed: The Universal House of Justice]